

FINRA Regulatory Notice 22-18 - Digital Signature Forgery and Falsification

Official source: [FINRA.org/rules-guidance/notices/22-18](https://finra.org/rules-guidance/notices/22-18)

Purpose

FINRA reminded firms to supervise for customer, colleague, and supervisor signature forgery or falsification through third-party digital-signature platforms.

Regulatory framework

Forgery or falsification may violate Rule 2010. Where the affected document is a firm book or record, Rule 4511 also applies because required records must be accurate. Rule 3110 requires a supervisory system reasonably designed for compliance and requires firms to respond to red flags.

Reported detection methods

FINRA described customer complaints, audit-trail reviews, email reviews, IP-address analysis, discrepancies between signer location and customer residence, use of representative-controlled email addresses, and identical representative/customer IP addresses as potential indicators.

Operational implication

Digital-signature controls should preserve completion certificates and audit trails and support exception review for anomalous email, IP, location, timing, and device data.